

26PR00479 & 4. Matter of The Sally L. Rowley Trust

County: sonoma

Division: Probate

Hearing date: 2027-01-08

Motion: Competing Petitions for Instructions

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26PR00479

Competing Petitions for Instructions

Tentative Ruling: The matter is CONTINUED to Friday, January 15, 2027 at 9:30 a.m. in Department 63 for the reasons set forth below.

The parties are ordered to meet and confer in compliance with local rule 6.2.F.2 and file statements of issues addressing both petitions in compliance with local rule 6.2.F.3 at least seven (7) court days in advance of the continued hearing.

Cynthia's petition contains both equitable and legal issues that depend on the validity of the Fifth Amendment. In their statements of issues, the parties should address whether they are seeking a jury trial for the legal issues, such as the elder abuse claim. If the parties do not waive the right to a jury trial for the legal issues, the Court will bifurcate the demand for jury trial after the equitable issues are decided by Court trial. If the parties waive the right to a jury trial for the legal issues, all issues will be heard by Court trial.